JUDGE ADMITS R. R. RECORDS

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heard men and women tell from the witness stand of his peculiar actions during the days immediately after the murder. Dumb appeal was stamped on his countenance when his eyes fixed on the attorneys fighting for the very life of him, as testimony fell from the lips of those who said Kelly had acknowledged to them he had murdered Joe Moore, his family and the two little Stillinger girls.

Dressed in a brand new suit of blue, a light silk waist, new shoes and hat, Mrs. Kelly sat close by the side of her husband. She, too, seemed to feel the weight of the load bearing down upon the shoulders of her accused husband. The little woman entered the court room at 8:45 o'clock. She wore a smile for the attorneys who are battling for the man she hopes to see regain his freedom. She was in good spirits when the bailiff called court to order. It was a bad day for the Kelly family, however, and the woman's face showed marks of suffering when Judge Boies announced at 4:30 o'clock in the afternoon court would adjourn until 9 o'clock tomorrow morning.

Attorney General Havner had offered again in evidence the Burlington railroad record showing the ticket sales for June, 1912, in an effort to establish that Mr. and Mrs. William Simons, who testified Friday, had heard Kelly talking on the train of the Villisca murders an hour or so before anything was known of the tragedy in Villisca. The railroad company's record, it is said, will show that Mr. and Mrs. Simons purchased the only tickets which were bought at Sidney for Carson during June, 1912, and that they were bought on the day after the night of the crime. The witnesses said they knew they had taken the trip from Sidney to Carson sometime during early June, 1912, but were unable to fix the date as June 10th. It was on this trip that Simons and his wife declared they had heard Kelly discussing the crime before anything was known of it in Villisca.

Judge Boies declared he would look up the point of law raised by Attorney Mitchell when he objected to the admission of the railroad company's records as evidence, on the grounds that it was improper to accept against a defendant in a criminal action any other but a public record.

Attorney Mitchell asked permission of the court to argue the question this morning. In the event too much time is not consumed in argument on this point, it is likely that by tomorrow night the state will have completed its case as far as direct testimony is concerned. Attorney Hess for the state, declared that he thought by tomorrow night the state would rest its case.

The Witnesses

W. O. McQueen, deputy sheriff, Sioux Falls, S. D., and former United States deputy marshal, the first witness called this morning, declared he met Kelly at Winner, S. D., when he arrested the defendant there in January, 1914. Witness said the minister complained of being sick, saying that he was suffering with a severe headache. Mr. McQueen said Kelly declared he did not want to go to Iowa and repeatedly protested his innocence of having committed murder. Kelly was taken to the county jail in Sioux Falls. The witness declared he saw the prisoner in the jail there in 1915, when he was acting as jailor. "Kelly said to me while he was in jail, 'I killed the Moore family in Villisca,'" continued the witness. "I told him not to talk that way before the other prisoners, and he replied 'I will do as I please about it. They have never suspected me of this crime.'" Mr. McQueen also declared that Kelly had boasted to him that if the Villisca ax murder ever was solved he would be the man that solved it.

On cross examination by Attorney Mitchell the witness declared that he arrested the defendant in his (Kelly's) Winner office; that Kelly was preaching in the Methodist church there at the time and doing public stenographic work. He said there was a woman in the office when he called for the prisoner. Mr. McQueen said it was in April, 1915, that Kelly made the declaration to him that "I killed the Villisca people."

Julius Wald, also deputy sheriff, Sioux Falls, S. D., said he knew Kelly when he was in jail at Sioux City. On one occasion, the witness said, when Sheriff O. E. Jackson and County Attorney W. C. Ratcliff called at the jail to see the prisoner Kelly asked "What them people from Iowa wanted?" "I did it," Kelly is said to have continued, "but how did they find it out?" The bloody shirt question again was introduced when the witness said Kelly, in reply to his question, told the blood on the shirt had been the result of the defendant's nose bleeding. Wald said Kelly told him that he had sent the shirt to a laundry in Council Bluffs to be washed after having tried to wash it out himself first.

Cross examined by Attorney Mitchell, the witness repeated the conversation he had with the prisoner in the Sioux City jail. The witness did not remember the names of Sheriff Jackson and Attorney Ratcliff, who are said to have called on Kelly while he was a prisoner in the South Dakota jail. "I told Kelly the men who had called to see him thought he was the murderer and asked him 'How did that blood come on that shirt?'" said the witness. "I am a man who does a great deal of studying," Kelly is said to have replied, "and my nose was bleeding and it got on my shirt." Wald was not certain, but he thought Kelly was discharged from jail in 1914.

James Tyler, a soldier now located at Camp Burnside, and formerly of Sioux Falls, knew Kelly while the witness was a cell mate of the defendant in the Sioux Falls jail. Tyler said he talked with Kelly frequently about the Villisca ax murders. Kelly is said to have told the witness all about the crime. "He told me," Tyler testified, "that he was the first man in the house after the bodies were discovered. Kelly said he had been to church in Villisca the night of the murder and was entertained at the home of a preacher. After he had retired for the night he said he heard a noise and went on to the street. He heard another noise in the house and went into the house to see what it was. He said he found the people all dead. He said the murders occurred about a block and a half from where he was staying. In another conversation two days later, Kelly told me he had killed the Moore family, and he added that he would like to kill Jerry Carlton and several United States officers. I told him he would get into trouble if he continued to talk this way. Kelly replied 'What do I care? I will talk as much as I please.'

Cross examined by Attorney Mitchell, Tyler said this conversation with the defendant had taken place in jail at Sioux Falls, S. D., in 1915. He said he told Mr. McQueen about it and also related it to John B. King and another prisoner in the jail at the time. The witness said he wrote a letter about it a month ago to Attorney General Havner.

W. D. Olmstead, city attorney at Winner, S. D., identified the prisoner. The witness said Kelly entered his, Mr. Olmstead's, office on one occasion and declared he was not in reality a minister of the gospel, but that he was a Burns detective working on the Villisca ax murder case and wanted to work on the Gible murder in Winner. "He said he was in a small town a short distance from Villisca," continued the witness, "preaching the day preceding the night of the murders. He also said he was the first person to enter the house after the murder; that he found the ax in the rear of the house, and that he expected to go to Omaha the following week and place the guilty party under arrest; that he sent or took a bloody shirt to a Council Bluffs laundry and that it had been returned to the man who committed the murder.

"I saw Kelly for the first time when he came to my office," said the witness on cross examination, "the latter part of 1913 or the first part of 1914." The witness said Kelly was pastor of the Methodist church in Winner. "He said his congregation was criticizing him because he was rooming at the house of F. T. Thomas, a saloon keeper of Winner." The witness repeated the conversation he related in his direct examination. Witness said he wrote a letter to the attorney general about what Kelly had said to him. The communication, he declared, was dated sometime in May, 1917. The witness also stated he had been called on by some of the state agents. T. W. Passwater was given as the name of one of the representatives of the attorney general's office who had approached the witness.

Miss Margaret Struck, a school teacher of Sioux City, and a resident of Carroll, Ia., while Kelly was supplying the pulpit of the Presbyterian church in that city during the latter part of 1912 and 1913, said the defendant called at the home of her father one Sunday afternoon during 1913. The prisoner, she said, occupied a seat in the parlor and talked of the Villisca ax murders in the presence of her mother, sister, brother and herself. She said Kelly declared he had attended the exercises at the Presbyterian church in Villisca on the night of the murders, sat directly across the aisle from the Moores and noticed the Stillinger girls on the program. He said the Stillinger girls were taller than the other girls who took part in the exercises. "He also said," the witness continued, "that Joe Moore was quite a large man." He said he stayed at the home of the Presbyterian minister that night and that he could not sleep. He said he went out onto the balcony to cool off. He said the family were sleeping outside in a tent. Kelly said he heard a noise like a crunching sound, which he afterwards learned was the ax crashing against the skulls of the victims in the Joe Moore residence. Kelly went on to tell us that while the murderer was at work two persons passed the house and the murderer went onto the back porch and returned to the house after the persons had passed by. This, he said, was between 1 and 2 o'clock in the morning.

Miss Struck said she had lived in Carroll about eight years, upon cross examination, and that she had attended Kelly's church while he was pastor there. She thought he had been in Carroll about two months when he told this story in her home. Miss Struck said she did not remember having told any one immediately after she had heard the minister relate the story of the Villisca tragedy. She said since she had talked to Mr. Kendig of Sioux City, and Mr. Passwater about the matter. These latter conversations she said took place in 1917.

H. C. Stevens, former sheriff of Carroll county and retired merchant of Carroll, said he had known Kelly in 1913 while he was supplying the pulpit of the Presbyterian church in that city. He said he invited the minister to his house for Sunday dinner during the spring of 1913. "Mr. Kelly told me and my wife on this occasion," said the witness, "that he was being accused of having committed the Villisca ax murders. He said the detectives were after him because he had not occupied his bed in Villisca on the night the murders were committed. He said he had attended services at the church Sunday night, the night of the murder; that it was late when he returned to his room, and as he was going to leave on an early train the next morning, he did not think it was of any use to go to bed."

On cross examination, the witness said he did not know where Mrs. Kelly was at the time this conversation took place. He said the minister's wife was not in Carroll at the time, but came later. Kelly was not making Carroll his permanent home, and he supposed the minister lived in Omaha. "Following this conversation with Mr. Kelly," said Mr. Stevens, "I advised him to communicate with the attorney general."

Miss Hildred Struck, the 15-year-old sister of Miss Margaret Struck of Sioux City, declared she had heard the story Kelly is said to have related at their home in Carroll concerning the Villisca murders. Miss Hildred corroborated the testimony of her sister. "Mr. Kelly said he had noticed a strange looking man seated behind the Moore family in the Presbyterian church," said the witness.

Mrs. H. C. Stevens, wife of H. C. Stevens of Carroll, was called and Attorney Mitchell objected to the admission of her testimony because her name did not appear on the indictment as having testified before the grand jury. The court overruled the objection when it was shown that Mrs. Stevens gave her own name instead of her husband's when she appeared before the grand jury. She said it was April 27, 1913, when Kelly took dinner at her home and told the story related by her husband on the witness stand.

G. W. Thomas, auditor for the Green Bay Lumber Company, Carroll, Ia., identified the prisoner as the minister he had known in Carroll in April, 1913. He had heard Kelly talk about the Villisca ax murders. "He said he spent the night of the murder in the Presbyterian manse at Villisca," said the witness; "that he had gone six miles into the country from Villisca to preach that afternoon and returned to Villisca to spend the night and that he went to the depot the next morning an hour or an hour and a half before he took an early morning train."

Miss Beulah Calloway of Carroll, Ia., declared she had known Kelly in 1913; that she talked to him in his room in Dr. Spaulding's home at Carroll. Attorney Mitchell at this point inquired of the attorney general if it was his purpose to question the witness along the lines she was questioned when she testified before the grand jury. Mr. Havner replied that he did and the court sustained the objection of the defense to introducing evidence which it was said was not enumerated in the indictment. Miss Calloway is said to have declared to the grand jury that Kelly made improper proposals to her.

Dr. and Mrs. C. W. Spaulding of Carroll, Ia., testified that Kelly had told them that a young woman in the laundry at Council Bluffs was causing him a great deal of trouble. Witnesses said Kelly had told them that he had sent a shirt, which he had stained with some fluid, to the laundry just after the Villisca ax murders in a separate package and ordered it sent to his home; that he had sent it in a separate package because he did not want to soil the other clothes. This conversation took place, it was said, early in 1913.

Attorneys for the defense did not cross examine the witnesses.

C. E. Mallott, undertaker of Carroll, Ia., said he knew Kelly when he was pastor of the church in that city. In a conversation with the defendant in the spring of 1913, witness said he

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